



Anti-Bullying & Harassment Policy & Procedures

Document No:	2.14
Version Date	May 2026
Approved by	Senior Management Team
Policy Group	Human Resource
Version Number	V04
Next review due	May 2027
External reference :	– OfS Condition B2 on student support and protection – The Communications Act 2003 – Equality Act 2010, OIA – Protection from Harassment Act 1997 – The Malicious Communications Act 1988 – Public Order Act 1986

Version Control			
Previous Version	New Version	Date	Update/Notes
V2 (10-07-24)	V3	15-04-25	Added version control table. Added the term 'sexual harassment.' Updated the investigative process chart in the appendices.
V3 (15-04-25)	V4	14-05-26	Annual review – reference to OfS B2 condition, appeals process and statements on confidentiality and retaliation have been added and there are updates to the disciplinary process.

Contents

1.	Introduction	3
2.	Purpose and Scope	3
3.	Aims and Objectives	4
4.	Types of Bullying and Harassment.....	4
5.	Procedures	5
5.1.	Informal Procedure.....	5
5.2.	Informal Meeting	6
5.3.	Escalation	6
5.4.	Formal Procedure	6
5.5.	Disciplinary Panel (DP).....	7
5.6.	Investigation Officer (IO).....	7
5.7.	Witness Statements.....	7
5.8.	Investigative Meeting	8
5.9.	Investigative Meeting Protocols	8
5.10.	Confidentiality	8
6.	The Disciplinary Hearing.....	9
6.1.	Decision of the Disciplinary Panel.....	9
7.	Sanctions	9
8.	Appeals	10
9.	Record Keeping.....	10
10.	Recommended Investigating Officers	10
11.	Investigative Process.....	11

1. Introduction

Trent Education Centre (TEC) is determined to ensure that all students at TEC feel safe and are not subjected to any form of bullying or harassment when studying or working at one of the TEC Student Centres or when representing TEC in any other location. TEC acknowledges that the experience of being bullied or harassed can severely impact work and life of students and we will do everything possible to prevent bullying and harassment of any student by any other student, staff member, or stakeholder, and to deal with instances promptly should they occur. This policy supports compliance with OfS Condition B2 by ensuring students are protected from bullying, harassment and sexual harassment, and that concerns are addressed promptly, fairly and transparently.

2. Purpose and Scope

This policy and procedures will protect the right of individual students to their personal safety and dignity, and for this reason bullying and harassment, including sexual harassment are universally treated by TEC as unacceptable and will not be tolerated. Please see the TEC [Sexual Harassment Policy](#) for more information on how TEC deals with this issue in particular.

Bullying and harassment may be illegal and TEC may report people to the authorities if it is believed that their bullying or harassment of others is unlawful. Many instances of bullying and harassment are related to discrimination. Any act of retaliation against a complainant or witness involved in the process will be treated as gross misconduct and subject to disciplinary action. TEC is committed to equality, diversity and inclusion which includes eradicating any form of discrimination against people including when the discrimination is based on the following criteria:

- Age
- Ethnicity
- Religion or beliefs
- Sexual orientation
- Cultural background
- Gender and transgender
- Disability or learning difficulty
- Trade union membership or activity
- Marital status or family circumstances
- Any other characteristic

Students can expect that they will be able to come and study at TEC in person or online without having to face any form of bullying or harassment including sexual harassment from any other person. TEC will deal with bullying and harassment complaints quickly and rigorously. Students may complain informally or formally through TEC [Complaints and Appeals Policy](#) on our website or by following the link here <https://trenteducation.co.uk/complaint/>

3. Aims and Objectives

This policy aims to provide every student, staff member, and stakeholder with the information they need to understand if bullying and harassment of a student has occurred, and what they can do about it if they or a student they know requires protection from bullying and discrimination. It also explains what actions TEC can and will take if any individual or group of people participate in bullying or harassing another student or students at a TEC Study Centre or at any other location. This policy has the following objectives:

- To ensure that all students, staff, and stakeholders share the responsibility for fostering a safe, tolerant and compassionate learning, and social environment that is free from bullying, threats, harassment, and intimidation.
- To provide further support clarification to our existing policy on Safeguarding for people who may be victims of bullying and harassment
- To provide anyone who makes or reports an allegation of bullying or harassment with all the assistance and support they need so they do not feel unprotected or at risk of repercussions
- To help everyone identify different types of bullying and harassment and to provide a process that TEC can use to deal with any cases fairly, safely and effectively
- To clarify the roles of individuals when an allegation of bullying and harassment have been made
- To provide all the information on required documentation and record-keeping if an allegation is reported.

4. Types of Bullying and Harassment

The following list includes examples of bullying and harassment that may occur, but it is not exhaustive:

- Physical violence
- Making arguments with others without due cause
- Being rude or offensive to others intentionally
- Ignoring someone's contributions and excluding them from activities, events or access to important information they should have access to
- Giving people too much work to do so they are not able to cope
- Starting or spreading rumours about other people with malicious intentions
- Treating someone unfairly compared to the way in which you treat others
- Continuously taunting or mocking someone to the extent that they are made to feel uncomfortable
- Excluding someone from training and development opportunities
- Humiliating, threatening and offending or slandering people on social media
- Making discriminatory remarks about someone
- Sexual harassment such as inappropriate touching or upskirting
- Direct physical, verbal, non-verbal
- Cyber-bullying using social media, texting and use of images and video

5. Procedures

In the first instance when there is an allegation of bullying or harassment, it is recommended that the parties concerned should seek to resolve the matter informally if possible. This is only recommended where there is no risk to someone's safety from physical, verbal or mental abuse.

In instances where someone's safety is at risk, students should inform their tutor or other senior person at TEC they feel comfortable talking to. **If you are concerned about your own or someone else's safety, call the police and inform a senior member of staff immediately (999 is for emergencies and 101 is for non-emergencies)**

All complaints of bullying or harassment will be promptly addressed, beginning with an Informal Procedure whenever possible. This approach typically yields effective results while reducing embarrassment and protecting confidentiality.

TEC treats all reports of bullying and harassment confidentially. Information is shared only with staff who need it to investigate or support the student.

5.1. Informal Procedure

- Students have various options for addressing bullying or harassment, ranging from requesting that the offender to stops, to emailing a formal complaint at complaints@trenteducation.co.uk or using the [Complaints Form](#) on the TEC website. When submitting a complaint using the complaints email or complaint form, students **should make it clear that they are complaining about bullying or harassment**, which is dealt with according to this policy rather than the Complaints Policy. Typically, TEC staff will treat allegations of bullying or harassment with greater urgency than other types of complaint.
- Students who believe they are experiencing bullying or harassment should document all relevant incidents in writing, including times, dates, the names of any witnesses, and other pertinent details.
- At times, some people may not realise that their actions are regarded as bullying or harassment by another individual so a few words may resolve the problem. If possible and safe to do so, the student should inform the person that their behaviour is unacceptable and request that it stops.
- Students may contact a staff member from the **Responsibilities** section below for any advice or guidance on how to manage a situation they are unhappy about. Anyone who reports bullying or harassment will be referred to the Safeguarding Officer for emotional, psychological and practical support and guidance.
- Students may discuss how they feel with anyone at TEC that they feel comfortable talking to. This may help them to decide what to do about situations they are uncomfortable about.
- TEC will try to ensure that a student is able to discuss the issue they face with someone from a similar background or with similar characteristics such as the same gender if they wish to.

5.2. Informal Meeting

- A student who makes the allegation may request an informal meeting with TEC staff to discuss their concern.
- They may invite someone to accompany them when attending the meeting to support them or to speak for them. We will try to support you in resolving the matter quickly and informally.
- A student may agree to talk to the accused and try to resolve the matter informally and amicably.

5.3. Escalation

- The matter can be escalated if the informal approach fails to resolve the issue or if the example of bullying or harassment is considered too severe. TEC will appoint an investigating officer (IO) in this case to investigate the matter.
- If the Informal Procedure does not resolve the situation or if the evidence suggests that there has been severe bullying or harassment, the SMT will appoint an Investigating Officer (IO) and a formal investigation will be conducted.
- The IO will investigate and determine whether the allegation needs to follow a formal procedure with a hearing by the TEC Disciplinary Panel explained below.

5.4. Formal Procedure

- Where the severity of the allegation warrants it, a Formal Procedure may be more appropriate. While personal discussion may resolve some cases of bullying or harassment, there will inevitably be instances where resolution through the Informal Procedure is not possible. This procedure aims to ensure a fair, confidential, and thorough handling of formal complaints regarding bullying or harassment.
- **Initiating the Formal Procedure:** A student (complainant) must submit a complaint by email complaints@trenteducation.co.uk, or using the website [Complaints Form](#). Alternatively, a relative, friend, or supporter (such as a member of the Student Council or an external agency) may file the complaint if the person they represent agrees.
- **Giving the Details of the Complaint:** When submitting an email or completing the Complaints Form, **the complainant must state if they are complaining about bullying or harassment.** The complaint should state the name of the people involved and explain the reason why they are complaining about them. They need to provide the date and time of any incidents as well as witness names. They also need to say what they have done about the issue so far.
- **Acknowledgement:** The complainant will receive written acknowledgement of their formal complaint within 5 working days of receipt, and an Investigating Officer (IO) will be in touch to discuss the complaint with them within 10 days.
- **In danger:** If the bullying or harassment is deemed dangerous, a staff member may need to contact the complainant immediately on receipt of the complaint and refer the complainant to the Safeguarding Officer who will take the appropriate steps to ensure their safety.
- **Safeguarding Officer:** the Complainant will also be referred to a Safeguarding Officer or the Designated Safeguarding Lead, to ensure the complainant has everything they need and is not at risk.

5.5. Disciplinary Panel (DP)

Cases that cannot be successfully resolved or are too serious for the Informal Procedure, will be referred to a Disciplinary Panel which includes the following members:

- Head of Compliance
- Head of Operations (Secretary)
- Head of Quality
- Designated Safeguarding Lead

The Disciplinary Panel reports to the Academic Board on the outcome of an allegation of bullying or harassment.

5.6. Investigation Officer (IO).

The DP will appoint a suitable member of the Academic Board as the Investigating Officer who is someone that has no connection to any of the people involved and can make an independent and objective assessment of what happened. The IO will have the following responsibilities:

- **Preliminary Investigation:** Arrange a preliminary investigation as soon as possible
- **Notification to Alleged Harasser:** Inform the alleged bully/harasser of the allegation as soon as possible with written information outlining the complaint and the time allowed to respond. Depending on the severity, the IO may recommend that the people involved need to be separated and this may require temporary suspension of the alleged bully/harasser.

5.7. Witness Statements

The IO will write reports and gather written statements according to the following principles:

- **Written Statements** must be provided and made available to the student and their representative, redacted to preserve anonymity.
- **Accuracy** Reports should include accurate information about an incident including the date, time location and people involved.
- **Evidence:** Supporting evidence should be considered.
- **Credibility of witnesses:** Any reasons for fabricating evidence should be assessed.
- **Confidentiality:** Inform both parties that they must maintain confidentiality regarding the complaint and refrain from contacting the other party's witnesses to avoid influencing the outcome through further bullying or intimidation.

5.8. Investigative Meeting

- **Separate Meetings:** Separate meetings will be held between all people involved with the Investigating Officer (IO). The IO will also ask relevant people to provide written and signed statements of what took place.
- **Meeting Timeline:** The IO will arrange these within 14 days after sending the allegations to the people concerned.
- **Support During Procedure:** The complainant may bring a friend or relative to any meetings with them for support.
- **Anonymity for Witnesses:** Witnesses may request anonymity. The Investigating Officer will consider such requests and make a final decision. Despite anonymity, the accused must understand the allegations against them.
- **Balancing Interests:** Fairness requires that the accused must understand the accusations to defend themselves. The Investigating Officer will balance the necessity of safeguarding witness identities and ensuring a fair hearing.

5.9. Investigative Meeting Protocols

- Both parties may bring a friend, relative or other person to support them during the meeting
- Both parties can invite witnesses to give evidence on their behalf
- Upon completing the investigation, the IO will review the gathered material and determine whether the complaint is substantiated.
- If someone complains about sexual harassment, their appearance or sexual views will not be used as evidence against them
- Once the meeting concludes, both parties will receive an email from the IO detailing the outcome.
- If no witnesses are present and the case relies solely on conflicting statements, the IO will evaluate the circumstances and try to reach a fair decision.
- If the IO determines that the TEC's Bullying and Harassment Policy has been breached, a disciplinary hearing will be scheduled.
- If the investigation concludes without sufficient evidence to warrant a Disciplinary Hearing, the IO must inform the complainant. However, the complainant retains the right to request a hearing, in which case the IO must facilitate the necessary arrangements.
- It is important for students, staff, and stakeholders to recognise that some individuals may submit unfounded allegations of bullying or harassment with malicious intent. Such cases will also be investigated by the IO and referred to the Disciplinary Panel, as necessary.
- Safeguarding the complainant is a priority. An alleged victim should never be subjected to suspension for raising a complaint. If a relocation is deemed necessary to prevent further bullying, the individual should not be moved unless they voluntarily opt for the change.

5.10. Confidentiality

TEC will handle all allegations sensitively and confidentially, sharing information only with those who need it to investigate or support the student.

6. The Disciplinary Hearing

- TEC encourages full disclosure from individuals and will do everything it can to protect students who feel embarrassed or uncomfortable discussing what they have experienced or witnessed.
- Any act of retaliation against a complainant or witness involved in the process will be treated as gross misconduct and subject to disciplinary action
- If the complainant is required to participate in the hearing, they are entitled to bring a relative, friend, or supporter. This person may assist in directing questions, though the complainant is expected to respond personally.
- Once the hearing concludes, both parties will receive a formal written decision within seven days.
- The outcome of the hearing will remain confidential where possible.
- Additionally, both parties will be offered counselling and support once the process is complete, regardless of the outcome.

6.1. Decision of the Disciplinary Panel

The DP will either dismiss or uphold the allegation. If the allegation is upheld, the DP may impose a sanction from the list of sanctions below.

7. Sanctions

The sanctions which may be imposed by TEC for bullying and harassment may include one or more of the following:

- A verbal or written warning
- A formal apology in terms to be agreed by TEC to any person adversely affected by the incidence of bullying or harassment or any damage done to the TEC's relations with its stakeholders or the public
- Requirement to attend a designated bullying and harassment workshop
- Temporary suspension
- Withdrawal or exclusion
- In very serious cases, and where relevant, the police will be informed
- In cases considered as gross misconduct, staff or students may be suspended temporarily or dismissed/withdrawn

8. Appeals

The accused can appeal against the decision of the DP to the Appeals Panel (AP), which includes the following:

- Managing Director
- Executive Principal
- An Independent BoG member

If a member of the AP is implicated in the allegation or nominated as a DP, they must be replaced by a nominee.

The Appeals Panel decision is final.

9. Record Keeping

The Student Support Manager keeps all records of complaints and outcomes of bullying and harassment. These will be monitored and reviewed by the Head of Quality and Head of Compliance in order to ensure:

- The process used by TEC to deal with cases of bullying and harassment are effective; and
- Incidents of bullying and harassment including sexual harassment are monitored and reviewed so that patterns of behaviour can be identified and targeted if necessary to reduce the amount of such incidents occurring.

Records will be retained in accordance with TEC's Data Protection Policy.

10. Recommended Investigating Officers

Accused of bullying/harassment	Recommended Investigating Officer/s
Other Students	Designated Safeguarding Lead
Professional Staff	Head of Operations
Academic Staff	Head of Higher Education
Senior Staff	The Executive Principal
The Executive Principal	The Managing Director
Managing Director	An independent member of the BoG
External Stakeholder	The Head of Compliance

11. Investigative Process

